

		(commencing with Section 413.10) of Title 5 of Part 2 of the Code of Civil Procedure, process may be served upon limited liability companies ... as provided in this section.”].) Accordingly, an LLC may be personally served by delivering the summons and complaint to one of an enumerated list of individuals, including the designated agent for service of process. (Code Civ. Proc., § 416.10; Corps. Code, § 17701.16, subd. (b).) As an initial matter, Plaintiffs failed to use the mandatory Judicial Council Proof of Service of Summons (form POS-010). (See Code Civ. Proc., § 417.10, subd. (f).) While a computer-generated or typewritten form may be substituted for form POS-010, it must meet certain requirements. (Cal. Rules of Court, rule 2.150(a). Plaintiffs’ typewritten proof of service does not meet those requirements. (ROA 14.) The proof of service filed with the court indicates a copy of a document titled “Unlimited Civil Case Summons, Case # 30-2025-01532225 to Nationstar Mortgage LLC/dba Mr. Cooper, at 675 Anton Blvd, Costa Mesa, CA 92626” was personally served on Nationstar on 12/11/25. (ROA 14.) However, Nationstar’s evidence establishes its registered agent for service of process on that date was CSC - Lawyers Incorporating Service (“CSC”), located at 2710 Gateway Oaks Drive, Sacramento, CA 95833. (Ex. 1.) Nationstar’s evidence lists several CSC “agent authorized employees.” However, none have the surname “Cooper”. Plaintiffs have not filed an opposition. Therefore, they have not met their burden of proving the facts requisite to an effective service. The motion is granted.
9	Huynh vs. Williams 2024-01436961 Motion for Reconsideration Motion for Sanctions pursuant to CCP 128.7 CMC	Motion No. 1: The Motion for Reconsideration by Defendant Gerard Richard Williams III is DENIED. Defendant seeks reconsideration of the Court’s 7/8/25 order denying Defendant’s Motion to Compel the Clerk to Enter a Dismissal Order. Code of Civil Procedure section 1008(a) states, “(a) When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or

	granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” Defendant initially filed this motion on 7/10/25 then re-filed the motion on 10/16/25 after the case was removed and then remanded from federal court. Defendant should have requested a new hearing date for the timely-filed 7/10/25 motion, rather than filing a new, untimely motion for reconsideration. (Code Civ. Proc. 1008(a) [ten-day deadline to file motion for reconsideration].) However, even if the Court considers the merits of the untimely motion, there is no basis for relief. The motion was initially set for 6/1/26 but the parties stipulated to continue the hearing on the motion on 5/28/26. The Court has reviewed the opposition filed on 8/31/26 and the reply filed on 9/4/26. As described in greater detail in the 7/8/25 order, Plaintiff’s prior counsel had filed a request for dismissal with prejudice on 12/2/24. The Court denied Defendant’s request to enter the requested dismissal because Plaintiff asked to withdraw the request for dismissal on the basis that it was filed in error by Plaintiff’s counsel. Moreover, even if the dismissal had been entered, Plaintiff could have filed a motion to set aside the dismissal based on excusable neglect. Defendant points to “new or different facts” consisting of email exchanges from November – December 2024 between counsel in which Plaintiff’s counsel stated they intended to dismiss the case. Defendant asserts that Plaintiff’s withdrawal of the dismissal was due to a “change of heart” after consulting with new counsel, rather than a true mistake. Defendant states it did not have time to compile this evidence in response to Plaintiff raising the argument regarding mistake in opposition to the underlying motion. Defendant also asserts Plaintiff raised new arguments during the hearing as to whether Plaintiff’s counsel failed to follow the proper steps to obtain dismissal.
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	The Court declines to reconsider the 7/8/25 order. Defendant cites evidence consisting of emails between counsel, which could have been presented prior to the hearing on the underlying motion. (See <i>Baldwin v. Home Sav. of America</i> (1997) 59 Cal.App.4th 1192, 1198 [party seeking reconsideration must provide not only new evidence but also explanation for failure to produce evidence at earlier time].) Moreover, even assuming the Court considers the emails reflecting Plaintiff's prior counsel stating they intended to dismiss the action, Defendant fails to cite legal authority holding this evidence requires the Court to enter dismissal. Defendant has not shown reconsideration is required by new facts, evidence, or law. Motion No. 2: Plaintiff Hung Huynh's Motion for Sanctions against Defendant and his Counsel Under Code of Civil Procedure section 128.7 is DENIED. Plaintiff moves for sanctions of \$15,291.50 based on Defendant's allegedly frivolous and harassing litigation tactics related to the motion for reconsideration of the dismissal issue addressed above. The motion was filed on 3/20/26 and Movant's counsel declares they served the motion on Defendant on 2/18/26 in compliance with the safe harbor notice requirement of section 128.7. Legal Standard: Code of Civil Procedure section 128.7 states in part: "(b) By presenting to the court, whether by signing, filing, submitting, or later advocating, a pleading, petition, written notice of motion, or other similar paper, an attorney or unrepresented party is certifying that to the best of the person's knowledge, information, and belief, formed after an inquiry reasonable under the circumstances, all of the following conditions are met: (1) It is not being presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation. (2) The claims, defenses, and other legal contentions therein are warranted by existing law or by a nonfrivolous
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	argument for the extension, modification, or reversal of existing law or the establishment of new law. (3) The allegations and other factual contentions have evidentiary support or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery. (4) The denials of factual contentions are warranted on the evidence or, if specifically so identified, are reasonably based on a lack of information or belief. (c) If, after notice and a reasonable opportunity to respond, the court determines that subdivision (b) has been violated, the court may, subject to the conditions stated below, impose an appropriate sanction upon the attorneys, law firms, or parties that have violated subdivision (b) or are responsible for the violation. In determining what sanctions, if any, should be ordered, the court shall consider whether a party seeking sanctions has exercised due diligence. (d)A sanction imposed for violation of subdivision (b) shall be limited to what is sufficient to deter repetition of this conduct or comparable conduct by others similarly situated. Subject to the limitations in paragraphs (1) and (2), the sanction may consist of, or include, directives of a nonmonetary nature, an order to pay a penalty into court, or, if imposed on motion and warranted for effective deterrence, an order directing payment to the movant of some or all of the reasonable attorney's fees and other expenses incurred as a direct result of the violation." "A court has broad discretion to impose sanctions if the moving party satisfies the elements of the sanctions statute. Like its federal counterpart, however, rule 11 of the Federal Rules of Civil Procedure (28 U.S.C.), section 128.7 should be utilized only in the rare and exceptional case where the action is clearly frivolous, legally unreasonable or without legal foundation, or brought for an improper purpose. Because our adversary system requires that attorneys and litigants be provided substantial breathing room to develop and assert factual and legal arguments, section 128.7 sanctions should not be routinely or easily awarded even for a claim that is arguably frivolous, and instead should be made with restraint. Indeed, even if a plaintiff could not successfully defend against either demurrer or summary judgment, that alone is insufficient to support the sanction of
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	dismissal.” (<i>Kumar v. Ramsey</i> (2021) 71 Cal.App.5th 1110, 1120–1121.) Under section 128.7, “A legally frivolous claim is one that is objectively unreasonable: A claim is factually frivolous if it is not well grounded in fact and is legally frivolous if it is not warranted by existing law or a good faith argument for the extension, modification, or reversal of existing law. In either case, to obtain sanctions, the moving party must show the party's conduct in asserting the claim was objectively unreasonable. A claim is objectively unreasonable if any reasonable attorney would agree that it is totally and completely without merit.” (<i>Saurman v. Peter's Landing Property Owner, LLC</i> (2024) 103 Cal.App.5th 1148, 1172.) Application: Judge Strickroth took the original motion for reconsideration off calendar when the case was removed to federal court. After remand, Defendant should have filed an application for the Court to set a new hearing date on the timely-filed motion for reconsideration. Instead, Defendant filed a new, untimely motion for reconsideration under Code of Civil Procedure section 1008(a), which is mandatory and jurisdictional: “When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” However, Defendant asserts that the second motion was identical to the first motion, so filing a renewed motion had the same effect as requesting a new hearing date. The motion for reconsideration raised arguments which lacked merit. The motion sought relief based on purported new facts and evidence which was already available to movant at the time the original motion was filed, not the “new” facts or evidence required under section 1008. However, Defendant asserts, “[T]he Renewed Motion for Reconsideration (which is substantially the same as
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		Williams's Original Motion for Reconsideration) was made with a sound basis and in good faith. It is based on new evidence undermining Huynh's claim of a miscommunication between him and his lawyers. And, even though such evidence, emails between the parties' counsel, existed at the time of the briefing on the Motion to Enter Dismissal, the circumstance warranting their consideration after the Court's July 8, 2025 Order was that because Huynh had essentially sprung on the parties and the Court at the last minute his belated argument of "miscommunication," it left Williams and his then-counsel little opportunity to fully rebut it with all the possible testimonial and documentary evidence." (Opp. at p. 9.) Although the motion was untimely and lacked merit, the Court cannot say it was completely frivolous or filed for purposes of delay or harassment under section 128.7. Defendant's counsel believed that filing a renewed nearly-identical motion was appropriate since the Court took the original, timely motion off calendar. Defendant raises a colorable argument that the "new evidence" was not presented at the initial hearing because Plaintiff raised new arguments after the opposition was filed. Therefore, the motion is denied.
10	All Inclusive Insurance Services, LLC vs. EOS Organization, LLC 2023-01310746 Motion for Terminating Sanctions	Plaintiffs All Inclusive Insurance Services, LLC and Isidro Miramontes' motion for terminating sanctions or, in the alternative, issue and evidentiary sanctions against Defendant Aaron J. Green is DENIED without prejudice. "[T]erminating sanctions are to be used sparingly, only when the trial court concludes that lesser sanctions would not bring about the compliance of the offending party." (<i>R.S. Creative, Inc. v. Creative Cotton, Ltd.</i> (1999) 75 Cal.App.4th 486, 496.) "[W]here a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction." (<i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 992.) Plaintiffs have shown Defendant violated the Court's 4-29-26 Order compelling Defendant to (1) serve responses to Plaintiffs' Motion to Compel Responses to Special Interrogatories, within 21-days; (2) serve responses to Plaintiffs' Motion to Compel Responses to Request for Production of Documents, within 21-days; (3) to appear for his deposition within 21-days; and (4) pay monetary sanctions of \$6,518 within 30 days. (Harrison Decl., ¶¶ 19-24, Ex. 1.) Notice of the ruling was served by the court clerk by mail on Defendant. (ROA 347.) However, to date,